

Neelam Chowdhary And Ors vs State And Others on 3 December, 2020

Equivalent citations: AIRONLINE 2020 J AND K 398

Author: Sanjay Dhar

Bench: Sanjay Dhar

HIGH COURT OF JAMMU AND KASHMIR
AT JAMMU
(THROUGH VIRTUAL MODE)

CRMC No. 252/2014
IA 288/2014, CrIM 1052/2019
IA 01/2018

Neelam Chowdhary and ors.

.....Petitioner (s)

Through :- Mr. Rajesh Pal Samotra Advocate.

V/s

State and others

.....Respondent(s)

Through :- None.

Coram: HON'BLE MR. JUSTICE SANJAY DHAR, JUDGE

ORDER

This is an application seeking permission to place on record certified copies of petition under Section 15 of Hindu Marriage Act titled 'Major Sandeep Choudhary vs. Garima Choudhary' filed before the Court of learned Additional District Judge (Matrimonial Cases), Jammu, copies of affidavits containing the statements of Major Sandeep Choudhary, Sh. Ramesh Choudhary, petitioners herein, Garima Choudhary, respondent No.3 herein and her father Sh. Balwant Choudhary filed before the Court of learned Additional District Judge (Matrimonial Cases) Jammu, copy of judgment and decree dated 24.05.2019 passed by the Additional District Judge, (Matrimonial Cases) Jammu in the petition under Section 15 of Hindu Marriage Act in case titled 'Major Sandeep Choudhary vs. Garima Choudhary'.

For the reasons stated in the application, the same is allowed and the documents annexed to the application are taken on record. 1 In the light of the aforesaid documents placed on record by the petitioners, it has been contended by learned counsel for the petitioners that the petitioners and

respondent No.2 have settled their disputes amicably, as such, the impugned FIR deserves to be quashed.

2 I have heard the learned counsel for the parties and perused the record of the case.

3 The instant petition has been filed by the above named petitioners seeking quashment of F.I.R No. 43/2014 for offences under Sections 498- A/109 RPC registered against them at Police Station, Women Cell, Jammu. 4 It is the case of the petitioners that petitioner No. 2 and respondent No.3 are legally wedded couple. According to the petitioners, after the solemnization of their marriage, the relations between petitioner No. 2 and respondent No. 3 got strained. This led to their separation giving rise to filing of a petition by petitioner No.2 seeking dissolution of his marriage with respondent No.3 before the Court of Additional District Judge (Matrimonial Cases), Jammu. The parents of petitioner No.2 appear to have filed a criminal complaint for offences under Sections 323/341/415/420/451//506 RPC against the parents of respondent No.3 on the basis of which FIR No. 104/2014 came to be registered with Police Station, Trikuta Nagar, Jammu. Another FIR bearing No. 43/2014 for offences under Sections 498-A/109 RPC was registered with Police Station, Women Cell, Canal Road, Jammu at the behest of respondent No.3 against the petitioners.

5 During the pendency of aforesaid litigation and investigation of aforementioned FIRs, it seems that good sense prevailed upon the parties and they settled their disputes. In this direction, petitioner No.2 and respondent No.3 filed a petition for grant of divorce by mutual consent before the Court of learned Additional District Judge (Matrimonial Cases), Jammu. In the said proceedings, the parties filed affidavits by way of evidence in which they admitted the terms of compromise that has been entered into by and between the parties. On the basis of this compromise, learned Additional District Judge (Matrimonial Cases), Jammu has vide its judgment dated 24.05.2019, dissolved the marriage between petitioner No.2 and respondent No.3 by mutual consent. 6 As per the terms of the compromise, it has been agreed by both the parties that they will not file any litigation in future against each and other and that they have amicably decided not to pursue the criminal cases filed against each other in Police Stations/Courts concerned which included the impugned FIR.

7 In the backdrop of aforesaid facts, the question arises as to whether this Court has power to quash the proceedings, particularly when the offence alleged to have been committed by the petitioners is non- compoundable in nature. The Supreme Court in the case of Gian Singh. v. State of Punjab & another, reported in (2012) 10 SCC 303, while considering this aspect, has observed as under:

"57. The position that emerges from the above discussion can be summarised thus: the power of the High Court in quashing a criminal proceeding or FIR or complaint in exercise of its inherent jurisdiction is distinct and different from the power given to a criminal court for compounding the offences under Section 320 of the Code. Inherent power is of wide plenitude with no statutory limitation but it has to be exercised in accord with the guideline engrafted in such power viz; (i) to secure the ends of justice or (ii) to prevent abuse of the process of any Court. In what cases power to quash the criminal proceeding or complaint or F.I.R may be exercised

where the offender and victim have settled their dispute would depend on the facts and circumstances of each case and no category can be prescribed. However, before exercise of such power, the High Court must have due regard to the nature and gravity of the crime. Heinous and serious offences of mental depravity or offences like murder, rape, dacoity, etc. cannot be fittingly quashed even though the victim or victim's family and the offender have settled the dispute. Such offences are not private in nature and have serious impact on society. Similarly, any compromise between the victim and offender in relation to the offences under special statutes like Prevention of Corruption Act or the offences committed by public servants while working in that capacity etc; cannot provide for any basis for quashing criminal proceedings involving such offences. But the criminal cases having overwhelmingly and pre-dominantly civil flavour stand on different footing for the purposes of quashing, particularly the offences arising from commercial, financial, mercantile, civil, partnership or such like transactions or the offences arising out of matrimony relating to dowry, etc. or the family disputes where the wrong is basically private or personal in nature and the parties have resolved their entire dispute. In this category of cases, High Court may quash criminal proceedings if in its view, because of the compromise between the offender and victim, the possibility of conviction is remote and bleak and continuation of criminal case would put accused to great oppression and prejudice and extreme injustice would be caused to him by not quashing the criminal case despite full and complete settlement and compromise with the victim. In other words, the High Court must consider whether it would be unfair or contrary to the interest of justice to continue with the criminal proceeding or continuation of the criminal proceeding would tantamount to abuse of process of law despite settlement and compromise between the victim and wrongdoer and whether to secure the ends of justice, it is appropriate that criminal case is put to an end and if the answer to the above question(s) is in affirmative, the High Court shall be well within its jurisdiction to quash the criminal proceeding.."

8 Similarly, the Supreme Court in the case titled *Narinder Singh & Ors. Vs. State of Punjab & anr*, reported in (2014) 6 SCC 466, has laid down guidelines for quashing of criminal proceedings. The guidelines are reproduced as under:

"31. In view of the aforesaid discussion, we sum up and lay down the following principles by which the High Court would be guided in giving adequate treatment to the settlement between the parties and exercising its power under Section 482 of the Code while accepting the settlement and quashing the proceedings or refusing to accept the settlement with direction to continue with the criminal proceedings:

(I) Power conferred under Section 482 of the Code is to be distinguished from the power which lies in the Court to compound the offences under Section 320 of the Code. No doubt, under Section 482 of the Code, the High Court has inherent power to quash the criminal proceedings even in those cases which are not compoundable, where the parties have settled the matter between themselves. However, this power is

to be exercised sparingly and with caution. (II) When the parties have reached the settlement and on that basis petition for quashing the criminal proceedings is filed, the guiding factor in such cases would be to secure:

(i) ends of justice, or

(ii) to prevent abuse of the process of any Court.

While exercising the power the High Court is to form an opinion on either of the aforesaid two objectives. (III) Such a power is not to be exercised in those prosecutions which involve heinous and serious offences of mental depravity or offences like murder, rape, dacoity, etc. Such offences are not private in nature and have a serious impact on society. Similarly, for offences alleged to have been committed under special statute like the Prevention of Corruption Act or the offences committed by Public Servants while working in that capacity are not to be quashed merely on the basis of compromise between the victim and the offender.

(IV) On the other, those criminal cases having overwhelmingly and pre-dominantly civil character, particularly those arising out of commercial transactions or arising out of matrimonial relationship or family disputes should be quashed when the parties have resolved their entire disputes among themselves. (V) While exercising its powers, the High Court is to examine as to whether the possibility of conviction is remote and bleak and continuation of criminal cases would put the accused to great oppression and prejudice and extreme injustice would be caused to him by not quashing the criminal cases.

(VI) Offences under Section 307 IPC would fall in the category of heinous and serious offences and therefore is to be generally treated as crime against the society and not against the individual alone. However, the High Court would not rest its decision merely because there is a mention of Section 307 IPC in the FIR or the charge is framed under this provision. It would be open to the High Court to examine as to whether incorporation of Section 307 IPC is there for the sake of it or the prosecution has collected sufficient evidence, which if proved, would lead to proving the charge under Section 307 IPC. For this purpose, it would be open to the High Court to go by the nature of injury sustained, whether such injury is inflicted on the vital/delegate parts of the body, nature of weapons used etc. Medical report in respect of injuries suffered by the victim can generally be the guiding factor. On the basis of this prima facie analysis, the High Court can examine as to whether there is a strong possibility of conviction or the chances of conviction are remote and bleak. In the former case it can refuse to accept the settlement and quash the criminal proceedings whereas in the later case it would be permissible for the High Court to accept the plea compounding the offence based on complete settlement between the parties. At this stage, the Court can also be swayed by the fact that the settlement between the parties is going to result in harmony between them which may improve their future relationship.

(VII) While deciding whether to exercise its power under Section 482 of the Code or not, timings of settlement play a crucial role. Those cases where the settlement is arrived at immediately after the alleged commission of offence and the matter is still under investigation, the High Court may be

liberal in accepting the settlement to quash the criminal proceedings/investigation. It is because of the reason that at this stage the investigation is still on and even the charge sheet has not been filed. Likewise, those cases where the charge is framed but the evidence is yet to start or the evidence is still at infancy stage, the High Court can show benevolence in exercising its powers favourably, but after prima facie assessment of the circumstances/material mentioned above. On the other hand, where the prosecution evidence is almost complete or after the conclusion of the evidence the matter is at the stage of argument, normally the High Court should refrain from exercising its power under Section 482 of the Code, as in such cases the trial court would be in a position to decide the case finally on merits and to come to a conclusion as to whether the offence under Section 307 IPC is committed or not. Similarly, in those cases where the conviction is already recorded by the trial court and the matter is at the appellate stage before the High Court, mere compromise between the parties would not be a ground to accept the same resulting in acquittal of the offender who has already been convicted by the trial court. Here charge is proved under Section 307 IPC and conviction is already recorded of a heinous crime and, therefore, there is no question of sparing a convict found guilty of such a crime.

9 From a perusal of the aforesaid observations of the Supreme Court, it is clear that the offences arising out of matrimony relating to dowry or the family disputes where the wrong is basically private or personal in nature and the parties have resolved their entire dispute, the High Court will be within its jurisdiction to quash the criminal proceedings if it is known that because of the compromise arrived at between the parties, there is remote possibility of securing conviction of the accused. In fact, in such cases, the Supreme Court has clearly observed that it would amount to extreme injustice if despite settlement having been arrived at by the parties, the criminal proceedings are allowed to continue.

10. Adverting to the facts of the instant case, it is clear that the parties to the matrimonial dispute, i.e petitioner No. 2 and respondent No. 3 have entered into a compromise and in their statements recorded before the Court of learned Additional District Judge (Matrimonial Cases), Jammu, respondent No.3 herein has agreed not to pursue the impugned FIR. Merely because offence under Section 498-A RPC for which petitioners have been booked on the basis of the complaint made by respondent No. 3 is non-compoundable, if an end is not put to the criminal proceedings, it would amount to the grave injustice to the petitioners and in fact, it will amount to frittering away of the fruits of the compromise that has been arrived at between the parties. The continuance of criminal proceedings against the petitioners, in these circumstances, will be nothing but an abuse of process of law.

11 Taking conspectus of the aforesaid discussion, the petition is allowed. Accordingly, F.I.R No. 43/2014 for offences under Sections 498-A/109 RPC registered with Police Station, Women Cell, Jammu is quashed.

Disposed of, accordingly. Connected applications also stand disposed of.

(SANJAY DHAR) JUDGE Jammu 03.12.2020 Sanjeev PS Whether the order is speaking: Yes
Whether the order is reportable: Yes/No